

Benoit Blanc is widely acknowledged as the greatest living private investigator. His powers of deduction are such that he solves crimes without leaving his home in Louisiana. Instead, clients (once accepted) simply describe their mysteries, Blanc asks them penetrating and insightful questions, and he solves mysteries throughout the country from the comfort of his own living room. Indeed, rumor has it that Blanc has *never* left Louisiana in his life, although he routinely agrees to interviews with high society magazines in New York and California. Those magazines generally do not physically circulate outside of their home states, although the articles are universally available online and are a significant source of client referral for Blanc throughout the country. Also, for reasons known only to him, he has a particular interest in local politics in the Midwest, and runs a semi-anonymous blog about the same.¹ The blog has posted two stories about Des Moines and one about Cedar Rapids in the past five years, but no other Iowa stories. The blog uses standard technology to show location-based advertisements to viewers.

Occasionally, of course, Blanc does require “boots on the ground.” For this, he keeps Marta Cabrera, a New York resident, on retainer with his company, Blanc Enterprises (a sole proprietorship).² Marta travels at Blanc’s direction to locations throughout the country and, indeed, the world. There, she Facetimes Blanc, puts the phone in a specially designed head “holster,” and moves about the world at his instruction, essentially acting as his “body.”

Blanc was recently retained by Destiny “Dez Moyn” Moynahan, the infamous Corn Countess of Des Moines (Moynahan owns several thousand acres of cornfield surrounding Des Moines). Moynahan’s prized possession, the Corn Jewel, was stolen from Cob Mansion, her ancestral home. As is always the case, Blanc Enterprises’s standard client agreement contains a choice-of-law clause stating that Indiana law (which is generally favorable to private investigators) governs any dispute arising from the contract). It also states that “the client consents to jurisdiction in the state in which the investigation took place.”

When his conventional methods failed to crack the case, Blanc asked Marta to travel to Des Moines to let him “walk” about the property. Unfortunately, her plane experienced a mechanical failure and landed in Omaha, Nebraska. Per Blanc’s orders, Marta purchased a high-powered drone, which she flew over and around the Cob Mansion property at Blanc’s precise instruction for two days. Marta never set foot in Iowa. Blanc soon became convinced that one of two things were equally likely: (1) that the Corn Jewel was stolen by Harlan Throckmorton, the Buoy Baron of Bloomington, Indiana, and a distant relative of Moynahan; or (2) that Moynahan had faked the theft of the jewel by Throckmorton in order to defraud her insurance company. For the first time

¹ Blanc blogs under the name “The Kernel of Truth,” but it has been reported that he is the man behind the blog and he has not denied it.

² Under Louisiana law, sole proprietorships are legally indistinct from their owners.

in his professional career, Blanc determined that the two possibilities were exactly equally likely, and he could not deduce the correct one.

After Marta returned to New York, at Blanc's instructions, she sent a series of aggressive emails to Throckmorton, accusing him of stealing the Corn Jewel and threatening to expose him unless he returned it. Throckmorton, who is of a nervous disposition, suffered severe emotional distress from these emails. As a result, his buoy business (which ships buoys nationwide, with about 6% of its business being in Iowa) suffered from lack of attention. Bob's Buoy Barn in Cedar Rapids, Iowa, was forced to source buoys from another supplier.

At the same time, Blanc posted a story on the *Kernel of Truth*, entitled "Dez Moyn's Deft Des Moines' Theft." In it, he implied that Moynahan was faking the theft of the jewel. He then contacted Moynahan and immediately terminated his services, refusing to return the retainer.

- (1) Moynahan sues both Benoit Blanc and Blanc Enterprises in Polk County District Court in Des Moines, Iowa for breach of contract (for improperly terminating services and refusing to return the retainer), fraud (for misrepresenting himself in the New York and California magazines as a great private investigator, when in fact he refuses to leave his home, severely limiting his effectiveness), and defamation. Iowa's long-arm statute permits jurisdiction over "any out-of-state resident whose actions are a but-for cause of harm in the state." The defendant(s) make(s) a special appearance and move(s) to dismiss for lack of personal jurisdiction. Is the motion successful? (Assume for the purposes of answering that the court must independently have personal jurisdiction as to each claim.)
- (2) Throckmorton sues Marta, Blanc, and Blanc Enterprises in federal district court in the Southern District of Iowa for intentional infliction of emotional distress. The defendants move to dismiss under Rule 12. Should the court grant the motions?

(instructions on next page)

INSTRUCTIONS:

1. **Word Limit:** 1400 words
2. **You may work alone, with a partner, or in groups of up to four.**
 - a. **Do not discuss the assessment with anyone else** – including Grace, other students, or classmates *outside of* your group (I won't consider group "break ups" to be a violation of this rule).
 - b. You **must list the group members at the bottom of your answer** (does not count against your word count)
 - c. Everyone in the group **must individually turn in an identical copy via Blackboard**
3. At the bottom of your answer, please include the statement: **"I/we did not use an AI/LLM to assist in the preparation of this answer"** and **sign your name(s)**.
 - a. Electronically typing your name will suffice. This also does not count against your word limit.
4. **At the bottom of your answer, please state "[number] words."**
 - a. Use the default word count of your word processing software. This also does not count against your words (You can highlight *just* your substantive answer, and Word will tell you the word count of that selection.)
5. This assessment is due as a .pdf or .docx file **submitted via Blackboard** by 12:59 PM on Tuesday 10/14/25.
 - a. **This is a strict deadline. No late assessments will be accepted.** No physical copies will be accepted. If for any reason the Blackboard submission does not work, I will accept alternate submissions via email pursuant to the same deadline.
6. As stated in class, **failure to follow these instructions will result in a deduction from your grade on this assessment.**

E.G. bottom of answer signature block:

1372 words

Group Members: Luke Smith Morgan, Charles Warren

We did not use an AI/LLM to assist in the preparation of this answer.

/s/ Luke Smith Morgan